34. Which one of the following suggested that the Governor should be an eminent person from outside the State and should be a detached figure without intense political links or should not have taken part in politics in the recent past?

(a) First Administrative Reforms Commission (1966)
(b) Rajamannar Committee (1969)
(c) Sarkaria Commission (1983)
(d) National Commission to Review the Working of the Constitution (2000)

Ans : (c) The Sarkaria Commission was formed by the Government of India in June 1983 to make its recommendations on the balance of power related to center-state relations. It was headed by Justice Rajinder Singh Sarkaria, retired Judge of the Supreme Court. This commission made several recommendations with reference to the Governor, namely Governor should be an eminent person and not belong to the state where he is to be posted.

I. State chief minister should have a say in the appointment of governor.
II. Governor should be a detached figure without intense political links or should not have taken post in politics in recent past.
III. Governor should not be a member of the ruling party.

• Legislature : Council of Ministers

35. With reference to the Legislative Assembly of a State in India, consider the following statements :

1. **The Governor makes a customary address to Members of the House at the commencement of the first seasion of the year.**
2. **When a State Legislature does not have a rule on a particular matter it follows the Lok Sabha rule on that matter.**

Which of the statements given above is/are correct?

(a) 1 only (b) 2 only
(c) Both 1 and 2 (d) Neither 1 nor 2

Ans : (c) Under Article 176 (1) of the constitution, At the commencement of the first session after each general election to the legislative Assembly and at the commencement of the first session of each year, the Governor shall address the Legislative Assembly under Article 208 (1) A House of the Legislature as state may make rules for regulating subject to the provisions of this constitutions its procedure and the conduct of its business. Article 208 also provision that when a state legislature does not have a rule on a particular matter it follows the Lok Sabha rule on that matter.
Under Article 208 (2) until rules are made under clause (1) the rules of procedure and standing orders in force immediately before the commencement of this constitution with respect to the legislature for the corresponding province shall have effect in relation to the legislature of the state subject to such modifications and adaptations as may be made therein by the speaker of the Legislative Assembly, or the chairman of the legislative council, as the case may be.

• Judiciary (Central & State)

36. Consider the following statements :

1. **The motion to impeach a judge of the Supreme Court of India cannot be rejected by the Speaker of the lok Sabha as per the Judges (Inquiry) Act. 1968**
2. **The Constitution of India defines and gives details of what constitutes 'incapacity and proved misbehaviour' of the Judges of the Supreme Court of India.**
3. **The details of the process of impeachment of the Judges of the Supreme Court of India are given in the Judges (Inquiry) Act. 1968**
4. **If the motion for the impeachment of a Judge is taken up for voting, the law requires the motion to be backed by each House of the Parliament and supported by a majority of total membership of that House and by not less than two-thirds of total members of that House present and voting.**

Which of the statements given above is/are correct

(a) 1 and 2 (b) 3 only
(c) 3 and 4 only (d) 1, 3 and 4

Ans : (c) The motion to impeach a judge of the Supreme Court of India can be rejected by the speaker of the Lok Sabha as per the Judges (Inquiry) Act 1968.
The constitution of India does not define and gives details of the term incapacity and proved misbehaviour of the judges of the Supreme Court of India which are the criteria for the impeachment of the Judges.
The details of the process of impeachment of the Judges of the Supreme Court of India are given in the Judges (Inquiry) Act, 1968.
The motion for the impeachment of a Judge is taken up for voting the law requires the motion to be backed each House of the parliament and supported by a majority of total membership of that house and by not less than two-thirds of total members of that house present and voting.

37. With reference to the Constitution of India, consider the following statements :

1. **No High Court shall have the jurisdiction to declare any central law to be constitutionally invalid.**
2. **An amendment to the Constitution of India cannot be called into question by the Supreme Court of India.**

Which of the statements given above is/are correct?

(a) 1 only (b) 2 only
(c) Both 1 and 2 (d) Neither 1 nor 2

Ans : (d) High Courts are constitutional courts. They are the principal civil courts of original jurisdiction in each state and union territory. 43rd amendment provision that high courts have the jurisdiction to declare any central law to be constitutionally invalid.

The Supreme Court is the guardian of the constitution. In this capacity, anything that ultravires the constitution is cut down by the highest judiciary, including the constitutional amendment. The basic structure of the constitution derived in the Kesava Nanda Bharti case (24 April, 1973) plays an extremely important role in this function.

38. With reference to the Constitution of India, Prohibitions or limitations or provisions contained in ordinary laws cannot act as prohibitions or limitations on the constitutional powers under Article 142 it could mean which one of the following?

(a) The decisions taken by the Election Commission of India while discharging its duties cannot be challenged in any court of law
(b) The Supreme Court of India is not constrained in the exercise of its powers by laws made by the Parliament.
(c) In the event of grave financial crisis in the country, the President of India can declare Financial Emergency without the counsel from the Cabinet.
(d) State Legislatures cannot make laws on certain matters without the concurrence of Union Legislature.

Ans : (b) Article 142 states that the Supreme Court, in the exercise of its jurisdiction may pass such decree or make such order as is necessary for doing complete justice in any case or matter pending before it.
Any decree so passed or orders so made shall be enforceable throughout the territory of India in such manner as may be prescribed by the parliament.
Until a provision in that behalf is made, then it would be enforced in such a manner as the president may by order prescribe. One of the important instances of application of the Supreme Court of Article 142 was in the union carbide case- relating to the victims of the Bhopal gas tragedy. In this judgment, the Supreme Court went to the extent of saying that to do complete justice, it could even override the laws made by Parliament by holding that, "prohibitions or limitations or provisions contained in ordinary laws cannot *ipso facto*, act as prohibitions or limitations on the constitutional powers under Article 142." By this statement the Supreme Court of India placed itself above the laws made by parliament or the legislature of the states.

• Panchayati Raj System, Constitutional Amendments and Schedules

39. Consider the following statements :

1. **The 44th Amendment to the Constitution of India introduced an Article placing the election of the Prime Minister beyond judicial review.**
2. **The Supreme Court of India struck down the 99th Amendment to the Constitution of India as being violative of the independence of judiciary.**

Which of the statements given above is/are correct?

(a) 1 only (b) 2 only
(c) Both 1 and 2 (d) Niether 1 nor 2

Ans : (b) The 44th amendment of the Indian constitution was significant as it removed partially the distortions that were introduced into the constitution by 42nd amendment. But it had no proposal of an Article placing the election of the Prime Minister beyond judicial review.
A five-judge Constitutional bench in the NJAS case, in a majority of 4 : 1 rejected the NJAC Act, brought in by the 99th constitutional amendment by stating it as " unconstitutional and void". Justice Kehar stated that the expectation from the judiciary to safeguard the rights of the citizens of this country can only be ensured, by keeping it absolutely insulated and independent from the other organs of governance and the proposed NJAC violated the independence of the Judiciary.

40. The Ninth Schedule was introduced in the Constitution of India during the prime ministership of

(a) Jawaharlal Nehru
(b) Lal Bahadur Shastri
(c) Indira Gandhi
(d) Morarji Desai

Ans : (a) The first amendment to the Indian constitution added the Ninth Schedule to it . It was introduced by the Nehru government on 10 May, 1951 to address judicial decisions and pronouncements, especially about the chapter of fundamental rights. Amendment was made so that the land reforms to be carried out by it could not be challenged in the court. Laws previously included in this schedule could not be judicially reviewed, but on 11 January, 2007 the Supreme Court ruled that any law included in the 9th schedule could be challenged on the grounds that it would violate fundamental rights.

41. Under which Schedule of the Constitution of India can the transfer of tribal land to private parties for mining be declared null and void?

(a) Third Schedule (b) Fifth Schedule
(c) Ninth Schedule (d) Twelfth Schedule

Ans : (b) The Indian constitution provides autonomy to tribal areas in matters of governance under the fifth and sixth schedules, which is further fortified by the *Samatha V. State of Andhra Pradesh & ors* (1997) Judgment where the Supreme Court declared that the transfer of tribal land to private parties for mining was null void under the Fifth schedule. The framework for the protection of the rights of tribal and indigenous people is further strengthened by the Recognition of Forest Rights Act, 2006, which protects the individual and community rights of tribal people in forest areas and their right to free and prior informed consent in the event of their displacement and resettlement.